

16. **Provisions regarding officers borrowed from Central or State Governments, etc.**

(1) Where the services of a Government servant from any Ministry or Department of the Central Government other than the Ministry of Railways, or a State Government, or an authority subordinate thereto, or of a person from a local or other authority (hereinafter in this rule referred to as "the lending authority") are borrowed for appointment to a service or post under the Ministry of Railways, the authority which appointed him to that service or post (hereinafter in this rule referred to as "the borrowing authority") shall have the powers of the lending authority for the purpose of placing such Government servant or person under suspension or for conducting disciplinary proceedings against him:

Provided that where an order suspending such Government servant or person is made or a disciplinary proceeding is conducted against such Government servant or person, the borrowing authority shall forthwith inform the lending authority of the circumstances leading to the order of suspension or, as the case may be, the commencement of the disciplinary proceedings against such Government servant or person.

(2) In the light of the findings in the disciplinary proceedings conducted against such Government servant or person -

(i) if the borrowing authority is of the opinion that any of the minor penalties specified in the rules by which such Government servant or person is governed, should be imposed on him, it may, after consultation with the lending authority, pass such orders on the case as it deems necessary, in accordance with the said rules:

Provided that in the event of a difference of opinion between the borrowing authority and the lending authority, the services of such Government servant or person shall be replaced at the disposal of the lending authority;

(ii) if the borrowing authority is of the opinion that any of the major penalties specified in the rules by which such Government servant or person is governed, should be imposed on him, it shall replace his services at the disposal of the lending authority and transmit to it the proceedings of the inquiry and thereupon the lending authority may pass such orders thereon as it may deem necessary.

## **PART - V**

### **APPEALS**

17. **Orders against which no appeal lies** - Notwithstanding anything contained in this part, no appeal shall lie against -

- (i) any order made by the President;
- (ii) any order of an interlocutory nature or of the nature of step-in-aid of the final disposal of a disciplinary proceeding, other than an order of suspension;
- (iii) any order passed by an inquiring authority in the course of an inquiry under Rule 9.

18. **Orders against which appeal lies** - Subject to the provisions of Rule 17, a Railway servant may prefer an appeal against all or any of the following orders, namely:-

- (i) an order of suspension made or deemed to have been made under Rule 5;
- (ii) an order imposing any of the penalties specified in Rule 6 whether made by the disciplinary authority or by an appellate or revising authority;
- (iii) an order enhancing any penalty imposed under Rule 6;
- (iv) an order which -
  - (a) denies or varies to his disadvantage his pay, allowances, pension, Provident Fund benefits, service gratuity or other conditions of service as regulated by rules or by agreement; or
  - (b) interprets to his disadvantage the provisions of any such rule or agreement;
- (v) an order :-
  - (a) stopping him at the efficiency bar in the time-scale of pay on the ground of his unfitness to cross the bar;
  - (b) reverting him while officiating in a higher service, grade or post to a lower service, grade or post otherwise than as a penalty;
  - (c) reducing or withholding the pension or denying the maximum pension admissible to him under the rules, if he is a pensionable Railway servant;
  - (d) reducing or withholding the Government contribution to Provident Fund and Special Contribution to Provident Fund or Gratuity admissible to him under the State Railway Provident Fund Rules, and Gratuity Rules, if he is a non-pensionable Railway servant;
  - (e) determining the subsistence and other allowances to be paid to him for the period of suspension or for the period during which he is deemed to be under suspension or for any portion thereof;
  - (f) determining his pay and allowances :-
    - (i) for the period of suspension, or
    - (ii) for the period from the date of his dismissal, removal or compulsory retirement from service to the date of his reinstatement;
  - (g) determining whether or not the period from the date of his suspension or from the date of his dismissal, removal or compulsory retirement to the date of his reinstatement shall be treated as a period spent on duty for any purpose.

**Explanation:-** In this rule -

- (i) the expression 'Railway servant' includes a person who has ceased to be in Railway Service;
- (ii) the expression 'pension' includes additional pension, gratuity and any other retirement benefit.

## 19. Appellate Authorities -

- (1) A Railway servant, including a person who has ceased to be in Railway service, may prefer an appeal against all or any of the orders specified in Rule 18 to the authority specified in this behalf either in the Schedules or, where no such authority is specified -